

26STCV12653 26STCV12653

County: los-angeles

Division: Civil Law and Motion

Department: 731

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Case Number: 26STCV12653 Hearing Date: August 11, 2026 Dept: 731

[TENTATIVE] ORDER RE: DEMURRER

OF PROLOGIS TARGETED U.S. LOGISTICS HOLDINGS L.P., TO PLAINTIFF'S COMPLAINT

[CRS No. 422513435176]

Moving Party: Defendant, Prologis Targeted U.S. Logistics Holdings,
L.P.

Opposing Party: Plaintiff, Dylan Paton (Limited Opposition)

Notice: OK

Court Order

Now before the Court are Defendant Prologis
Targeted U.S. Logistics Holdings, L.P.'s ("Prologis") partially opposed
demurrer and motion to strike portions of Plaintiff's April 20, 2026, Complaint
(CRS No. 422513435176).

After review, the Court finds that Prologis's
demurrer and motion to strike are MOOT and their corresponding hearings are TAKEN
OFF CALENDAR.

A party may amend its pleading once
as a matter of course before an answer, demurrer, or motion to strike is filed,
or after such a motion is filed but before it is heard, provided the amendment
is filed and served no later than the deadline for filing an opposition to the
motion. (Code Civ. Proc., § 472, subd. (a).) That opposition deadline requires
that all papers opposing a motion be filed and served at least nine court days

before the hearing. (Code Civ. Proc., § 1005, subd. (b).) When a party timely files an amended complaint, the amendment moots any motion directed to the prior complaint. (JKC3H8 v. Colton (2013) 221 Cal.App.4th 468, 477; Sylmar Air Conditioning v. Pueblo Contracting Services, Inc. (2004) 122 Cal.App.4th 1049, 1054.) As a result, a demurrer directed to the superseded pleading should be taken off calendar once the amended complaint is filed. (People ex rel. Strathmann v. Acacia Research Corp. (2012) 210 Cal.App.4th 487, 506.) The right applies only to the original complaint initiating the action, and a plaintiff cannot amend an already amended complaint as of right even if a demurrer is pending against that operative pleading. (Hedwall v. PCMV, LLC (2018) 22 Cal.App.5th 564, 572–579.)

Here, in response to Prologis's demurrer and motion to strike, on July 26, 2026, i.e., more than nine court days prior to August 11, 2026, Plaintiff filed a First Amended Complaint, which has been received but not filed by the Court. Consequently, under the above authority, Prologis's demurrer and motion are directed toward a moot pleading and are taken off calendar.

The Clerk MAY now accept the First Amended Complaint as filed on July 26, 2026, i.e., the date on which it was received.

Plaintiff Dylan Paton is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.